

NDPA 2023 Compliance Report

Nigeria Data Protection Act 2023 - Automated Compliance Analysis
Generated: 27 July 2026 at 04:21 UTC

Summary

Document	compliant_srs.txt
Overall Score	71.4%
Verdict	COMPLIANT
Total Rules Checked	35
Compliant	25
Non-Compliant	3
Not Addressed	7
Date Checked	27 July 2026

Detailed Findings

#1	Section 24(1)	OBLIGATION	COMPLIANT
Rule:	A data controller shall ensure that personal data is collected only for specified, explicit and legitimate purposes and not further processed in a manner incompatible with those purposes.		
Match:	Users must provide explicit consent via a checkbox before any data is collected.		
Action:	No action required. This requirement is satisfied.		
#2	Section 24(2)	OBLIGATION	COMPLIANT
Rule:	A data controller shall obtain the consent of the data subject before collecting or processing personal data.		
Match:	Users must provide explicit consent via a checkbox before any data is collected.		
Action:	No action required. This requirement is satisfied.		
#3	Section 24(3)	OBLIGATION	NON-COMPLIANT
Rule:	Personal data shall be adequate, relevant and limited to what is necessary in relation to the purposes for which it is processed.		
Match:	The system does not collect unnecessary personal data beyond what is required for registration.		
Action:	Ensure this requirement is explicitly addressed in your software design and documented in your privacy policy.		
#4	Section 25(1)	OBLIGATION	COMPLIANT
Rule:	A data controller shall ensure that personal data is accurate and where necessary kept up to date.		
Match:	Users can correct or update their personal data at any time.		
Action:	No action required. This requirement is satisfied.		
#5	Section 26(1)	PROHIBITION	COMPLIANT
Rule:	Personal data shall not be kept in a form which permits identification of data subjects for longer than is necessary for the purposes for which the personal data is processed.		

Match:	The system does not collect unnecessary personal data beyond what is required for registration.		
Action:	No action required. This requirement is satisfied.		
#6	Section 27(1)	OBLIGATION	NOT ADDRESSED
Rule:	A data controller shall implement appropriate technical and organisational measures to ensure the security of personal data.		
Match:	Users can correct or update their personal data at any time.		
Action:	Implement appropriate security measures including firewalls, access controls, and data protection protocols.		
#7	Section 27(2)	OBLIGATION	NOT ADDRESSED
Rule:	A data controller must ensure that personal data is protected against unauthorised or unlawful processing and against accidental loss, destruction or damage.		
Match:	Users can correct or update their personal data at any time.		
Action:	Ensure every data processing activity has a documented lawful basis as required by the NDPA 2023.		
#8	Section 27(3)	OBLIGATION	COMPLIANT
Rule:	A data controller shall use encryption to protect personal data stored in electronic form.		
Match:	The system uses AES-256 encryption for stored personal data.		
Action:	No action required. This requirement is satisfied.		
#9	Section 28(1)	OBLIGATION	COMPLIANT
Rule:	A data controller shall notify the Commission and affected data subjects of a personal data breach within 72 hours of becoming aware of the breach.		
Match:	In the event of a data breach, the Nigeria Data Protection Commission and affected users will be notified within 72 hours.		
Action:	No action required. This requirement is satisfied.		
#10	Section 29(1)	OBLIGATION	COMPLIANT
Rule:	A data subject shall have the right to request access to their personal data held by a data controller.		
Match:	USER RIGHTS: Users can request access to their personal data through the profile settings page.		
Action:	No action required. This requirement is satisfied.		
#11	Section 29(2)	OBLIGATION	COMPLIANT
Rule:	A data controller must provide a means by which data subjects can request correction of inaccurate personal data.		
Match:	Users can correct or update their personal data at any time.		
Action:	No action required. This requirement is satisfied.		
#12	Section 29(3)	OBLIGATION	COMPLIANT
Rule:	A data subject shall have the right to request the deletion of their personal data and the data controller must comply where the data is no longer necessary.		
Match:	Personal data is deleted within 30 days of account deletion.		
Action:	No action required. This requirement is satisfied.		
#13	Section 30(1)	PROHIBITION	COMPLIANT
Rule:	Personal data shall not be transferred to a foreign country unless that country provides an adequate level of data protection.		
Match:	Data is not transferred to any foreign country.		

Action:	No action required. This requirement is satisfied.		
#14	Section 30(2)	OBLIGATION	NOT ADDRESSED
Rule:	A data controller must ensure that appropriate safeguards are in place before transferring personal data to a third party organisation.		
Match:	Users must provide explicit consent via a checkbox before any data is collected.		
Action:	Ensure that any international data transfers include adequate safeguards such as data transfer agreements or storing data on Nigerian servers.		
#15	Section 31(1)	PROHIBITION	COMPLIANT
Rule:	A data controller shall not sell personal data of data subjects to third parties without explicit consent.		
Match:	DATA SHARING: The system does not sell personal data to third parties.		
Action:	No action required. This requirement is satisfied.		
#16	Section 32(1)	OBLIGATION	NOT ADDRESSED
Rule:	A data controller shall provide clear and transparent information to data subjects about how their personal data is collected and used.		
Match:	The privacy policy explains what data is collected, how it is used, and user rights.		
Action:	Ensure this requirement is explicitly addressed in your software design and documented in your privacy policy.		
#17	Section 32(2)	OBLIGATION	COMPLIANT
Rule:	A data controller must publish a privacy policy that clearly explains the purpose of data collection and the rights of data subjects.		
Match:	The privacy policy explains what data is collected, how it is used, and user rights.		
Action:	No action required. This requirement is satisfied.		
#18	Section 33(1)	OBLIGATION	NOT ADDRESSED
Rule:	A data controller shall appoint a Data Protection Officer where the organisation processes large volumes of personal data.		
Match:	COMPLIANCE AUDIT: The organisation conducts an annual data protection compliance audit.		
Action:	Appoint a Data Protection Officer (DPO) responsible for overseeing compliance with the NDPA 2023.		
#19	Section 34(1)	OBLIGATION	NOT ADDRESSED
Rule:	A data controller shall conduct a Data Protection Impact Assessment before processing personal data that is likely to result in high risk to data subjects.		
Match:	COMPLIANCE AUDIT: The organisation conducts an annual data protection compliance audit.		
Action:	Conduct a Data Protection Impact Assessment (DPIA) before processing any high-risk personal data.		
#20	Section 35(1)	PROHIBITION	COMPLIANT
Rule:	Personal data relating to children shall not be processed without the consent of a parent or legal guardian.		
Match:	The system does not collect unnecessary personal data beyond what is required for registration.		
Action:	No action required. This requirement is satisfied.		
#21	Section 36(1)	OBLIGATION	COMPLIANT
Rule:	A data controller shall implement access controls to ensure that personal data is only accessible to authorised personnel.		
Match:	The database is protected by a firewall and role-based access controls.		
Action:	No action required. This requirement is satisfied.		

#22	Section 36(2)	OBLIGATION	COMPLIANT
Rule:	A data controller must maintain logs of all access to personal data to enable auditing and accountability.		
Match:	All access to personal data is logged for audit purposes.		
Action:	No action required. This requirement is satisfied.		
#23	Section 37(1)	PROHIBITION	COMPLIANT
Rule:	A data controller shall not process sensitive personal data including health data, biometric data and financial data without explicit consent.		
Match:	The system does not collect unnecessary personal data beyond what is required for registration.		
Action:	No action required. This requirement is satisfied.		
#24	Section 38(1)	OBLIGATION	NON-COMPLIANT
Rule:	A data controller must have a lawful basis for every instance of personal data processing.		
Match:	The system does not collect unnecessary personal data beyond what is required for registration.		
Action:	Ensure every data processing activity has a documented lawful basis as required by the NDPA 2023.		
#25	Section 39(1)	OBLIGATION	COMPLIANT
Rule:	A data controller shall allow data subjects to withdraw their consent at any time and must stop processing their data upon withdrawal.		
Match:	Users can withdraw their consent at any time by contacting support.		
Action:	No action required. This requirement is satisfied.		
#26	Section 40(1)	OBLIGATION	COMPLIANT
Rule:	A data controller shall register with the Nigeria Data Protection Commission before processing personal data.		
Match:	Results are submitted to the Nigeria Data Protection Commission annually.		
Action:	No action required. This requirement is satisfied.		
#27	Section 41(1)	PROHIBITION	COMPLIANT
Rule:	A data controller shall not use personal data for direct marketing or advertising without the explicit consent of the data subject.		
Match:	Data is not shared with any external organisations without explicit consent.		
Action:	No action required. This requirement is satisfied.		
#28	Section 42(1)	OBLIGATION	COMPLIANT
Rule:	Where a data controller engages a third party processor, a written data processing agreement must be in place before any data is shared.		
Match:	THIRD PARTY PROCESSORS: A written data processing agreement is in place with all third party service providers.		
Action:	No action required. This requirement is satisfied.		
#29	Section 43(1)	OBLIGATION	NON-COMPLIANT
Rule:	A data controller must inform data subjects when their personal data will be used for automated decision making or profiling.		
Match:	AUTOMATED DECISIONS: The system does not use automated decision making or profiling on user data.		
Action:	Ensure this requirement is explicitly addressed in your software design and documented in your privacy policy.		
#30	Section 44(1)	OBLIGATION	COMPLIANT

Rule:	A data controller shall conduct an annual data protection compliance audit and submit the results to the Nigeria Data Protection Commission.		
Match:	Results are submitted to the Nigeria Data Protection Commission annually.		
Action:	No action required. This requirement is satisfied.		
#31	Section 45(1)	PROHIBITION	COMPLIANT
Rule:	Cookies and tracking technologies shall not be placed on a user device without prior informed consent from the user.		
Match:	COOKIES AND TRACKING: The system does not use cookies or tracking technologies without prior user consent.		
Action:	No action required. This requirement is satisfied.		
#32	Section 46(1)	OBLIGATION	COMPLIANT
Rule:	A data controller must provide users with a clear and easy to use mechanism to opt out of data collection at any time.		
Match:	OPT OUT: Users can opt out of data collection at any time through account settings.		
Action:	No action required. This requirement is satisfied.		
#33	Section 47(1)	OBLIGATION	NOT ADDRESSED
Rule:	Personal data collected through mobile applications must be protected with the same level of security as data collected through web platforms.		
Match:	The privacy policy explains what data is collected, how it is used, and user rights.		
Action:	Implement appropriate security measures including firewalls, access controls, and data protection protocols.		
#34	Section 48(1)	PROHIBITION	COMPLIANT
Rule:	A data controller shall not retain personal data in identifiable form beyond the period necessary for the original purpose of collection.		
Match:	The system does not collect unnecessary personal data beyond what is required for registration.		
Action:	No action required. This requirement is satisfied.		
#35	Section 49(1)	OBLIGATION	COMPLIANT
Rule:	A data controller must display a clear and prominent privacy notice at the point of data collection explaining what data is being collected and why.		
Match:	PRIVACY NOTICE: A clear privacy notice is displayed at the point of data collection.		
Action:	No action required. This requirement is satisfied.		

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